

HOUSE No. 1164

The Commonwealth of Massachusetts

PRESENTED BY:

Sean Garballey and Jennifer Balinsky Armini

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to improve child and adolescent mental health services.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>1/15/2025</i>
<i>Jennifer Balinsky Armini</i>	<i>8th Essex</i>	<i>1/15/2025</i>

HOUSE No. 1164

By Representatives Garballey of Arlington and Armini of Marblehead, a petition (accompanied by bill, House, No. 1164) of Sean Garballey and Jennifer Balinsky Armini relative to the definition of licensed mental health professional in the insurance laws. Financial Services.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1014 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to improve child and adolescent mental health services.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 22 of Chapter 32A of the General Laws is hereby amended by
2 striking out the last paragraph, inserted by section 1 of chapter 80 of the acts of 2000, and
3 inserting in place thereof the following paragraph:—

4 For the purposes of this section, “licensed mental health professional” shall mean a
5 licensed physician who specializes in the practice of psychiatry, a licensed psychologist, a
6 licensed independent clinical social worker, a licensed mental health counselor, a licensed nurse
7 mental health clinical specialist, or a licensed educational psychologist within the lawful scope of
8 practice for such educational psychologist.

SECTION 2. Section 47B of Chapter 175 of the General Laws is hereby amended by striking out the next to the last paragraph, inserted by section 2 of chapter 80 of the acts of 2000, and inserting in place thereof the following paragraph:—

For the purposes of this section, “licensed mental health professional” shall mean a licensed physician who specializes in the practice of psychiatry, a licensed psychologist, a licensed independent clinical social worker, a licensed mental health counselor, a licensed nurse mental health clinical specialist, or a licensed educational psychologist within the lawful scope of practice for such educational psychologist.

SECTION 3. Section A of Chapter 176A of the General Laws is hereby amended by striking out the next to the last paragraph, inserted by section 4 of chapter 80 of the acts of 2000, and inserting in place thereof the following paragraph:—

For the purposes of this section, “licensed mental health professional” shall mean a licensed physician who specializes in the practice of psychiatry, a licensed psychologist, a licensed independent clinical social worker, a licensed mental health counselor, a licensed nurse mental health clinical specialist, or a licensed educational psychologist within the lawful scope of practice for such educational psychologist.

SECTION 4. Section 4A of Chapter 176B of the General Laws is hereby amended by striking out the next to the last paragraph, inserted by section 6 of chapter 80 of the acts of 2000, and inserting in place thereof the following paragraph:—

For the purposes of this section, “licensed mental health professional” shall mean a licensed physician who specializes in the practice of psychiatry, a licensed psychologist, a licensed independent clinical social worker, a licensed mental health counselor, a licensed nurse

31 mental health clinical specialist, or a licensed educational psychologist within the lawful scope of
32 practice for such educational psychologist.

33 SECTION 5. Section 4M of Chapter 176G of the General Laws is hereby amended by
34 striking out the next to the last paragraph, inserted by section 10 of chapter 80 to the acts of
35 2000, and inserting in place thereof the following paragraph:—

36 For the purposes of this section, “licensed mental health professional” shall mean a
37 licensed physician who specializes in the practice of psychiatry, a licensed psychologist, a
38 licensed independent clinical social worker, a licensed mental health counselor, a licensed nurse
39 mental health clinical specialist, or a licensed educational psychologist within the lawful scope of
40 practice for such educational psychologist.

41 SECTION 6. This act shall apply to all policies, contracts, agreements, plans and
42 certificates of insurance issued or delivered within or without the commonwealth on or after
43 March 1, 2006, and to all policies, contracts, agreements, plans and certificates of insurance in
44 effect before that date upon renewal or after March 1, 2006.